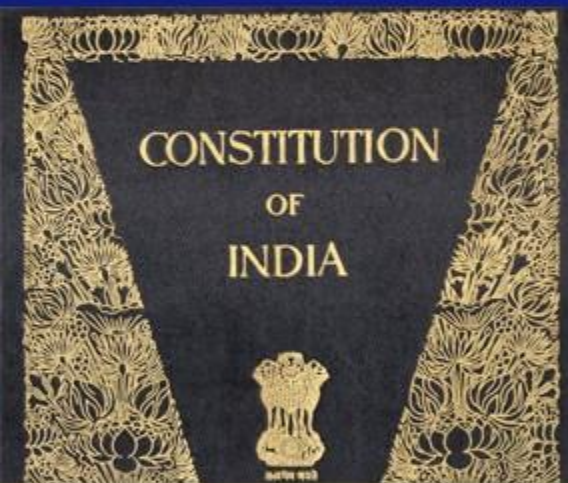


INDIAN POLITY



MODULE - 13

**SALIENT FEATURES OF
THE CONSTITUTION**
(PART-2)

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 3

MORE FLEXIBLE THAN RIGID

- 1 Another distinctive feature of the Indian Constitution is that **it seeks to impart flexibility to written Federal Constitution.**

- 2 A Rigid Constitution is one that requires a special procedure for its amendment. For Example: the American Constitution.

- 3 A Flexible Constitution on the other hand is one that can be amended in the same manner as the ordinary laws are made eg: The British Constitution.



INDIAN POLITY

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 3

MORE FLEXIBLE THAN RIGID

4 Indian Constitution is **neither Rigid nor Flexible** but synthesis of both.

5 Only to amend certain provisions it requires ratification by the State legislatures and even then **ratification by only half of them** would suffice (while American Constitution requires ratification by $3/4^{\text{th}}$ of the States).

6 Some provisions of the Constitution may be amended by a **special majority of the Parliament.**

AMENDMENTS
to the Constitution



THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 3

MORE FLEXIBLE THAN RIGID

AMENDMENT POWER
OF THE PARLIAMENT
UNDER SECTION 368



7 Parliament has been given power to alter or modify many of the provisions of the Constitution by a **simple majority as required for a general legislation**.

8 This is done by laying down in the Constitution that such changes “**shall not be deemed to be amendments of the Constitution under Article 368**”.

Eg: 1 Changes in the names, boundaries, areas and separation of States (Article 4).

Eg : 2 Abolition or creation of the second chamber of the State legislature (Article 169).

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 3

MORE FLEXIBLE THAN RIGID



9 Yet another evidence of this flexibility is the power given by the Constitution itself to the Parliament to supplement provisions of the Constitution by *legislation*.

10 Though the makers of the Constitution aimed at exhaustiveness they realized that it *was not possible to anticipate all exigencies and to lay down detailed provisions in the Constitution to meet all situations and for all times*.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 3

MORE FLEXIBLE THAN RIGID

- 11** Thus, the Constitution empowers the Parliament to give effect to certain provisions of the Constitution by legislation.



- 12** As far as Citizenship is concerned Articles 5-8 only lay down the conditions for acquisition of the citizenship at the commencement of the Constitution.

- 13** In pursuance of this power, Parliament has enacted the Citizenship Act, 1955 to give effect to the provisions of citizenship in India.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 3

MORE FLEXIBLE THAN RIGID



14 Similarly, Article 17 provides for **banning untouchability** and in exercise of this power Parliament has enacted the **Protection of Civil Rights Act, 1955**.

15 The obvious advantage of this scheme is that the law made by the Parliament **may be modified according to the exigencies which arise in that particular point of time without having to resort to a Constitutional Amendment**.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 4

PARLIAMENTARY FORM OF GOVERNMENT COMBINED WITH AN ELECTED PRESIDENT

- 1** The form of Government that was introduced by our Constitution both at the Union and the States is the **Parliamentary Government of the British Type**- The Westminster Model of Government.



- 2** The features of the Parliamentary Government in India are
- a) Presence of Nominal and Real Executives
 - b) Majority Party Rule
 - c) Collective Responsibility of the Executive to the Legislature
 - d) Membership of Ministers in the Legislature
 - e) Leadership of the Prime Minister or the Chief Minister
 - f) Dissolution of the Lower House

POINT NO. 4

PARLIAMENTARY FORM OF GOVERNMENT COMBINED WITH AN ELECTED PRESIDENT

WHY PARLIAMENTARY SYSTEM? WHY NOT PRESIDENTIAL SYSTEM?

- 1** A primary reason for the choice of the Parliamentary System of Government was that the people had a long experience of this system under the Government of India Acts.
- 2** Another reason is that the Parliamentary system is based on the Principle of cooperation and coordination between the legislative and executive organs.
- 3** The makers of our Constitution rejected the Presidential system of Government as in America on the ground that it is based on the doctrine of separation of powers between the executives and legislatures, which is likely to cause conflicts between them.
- 4** An infant democracy like India would be at risk in such a conflict prone environment. Thus we choose the Parliamentary form of Government.

POINT NO. 4

PARLIAMENTARY FORM OF GOVERNMENT COMBINED WITH AN ELECTED PRESIDENT

WHY PARLIAMENTARY SYSTEM? WHY NOT PRESIDENTIAL SYSTEM?

- 5** However, India had declared herself to be **Republic and thus we owed to have an elected President** to be the head of the Parliamentary System.
- 6** In this aspect, we followed the Irish President. But our Constitution is not an exact replica of the Irish Model either.
- 7** In Irish Constitution the Constitutional powers of the President can only be exercised by him on the advice of the Ministers **except those powers which are through his discretion.**
- 8** But in Indian Constitution **there is no provision authorizing the President to act in his discretion on any matter.** The 42nd Amendment Act has explicitly codified that the President “shall in the exercise of his function act in accordance with the advice of the Council of Ministers”.



BUNREACT NA hÉIREANN
CONSTITUTION OF IRELAND

POINT NO. 4

PARLIAMENTARY FORM OF GOVERNMENT COMBINED WITH AN ELECTED PRESIDENT

WHY PARLIAMENTARY SYSTEM? WHY NOT PRESIDENTIAL SYSTEM?

- 9** The Janata Government which followed **enacted the 44th Amendment**, which **empowered the President to refer a matter back to the Council of Ministers for reconsideration**.



- 10** Even though the Indian Parliamentary System is largely based on British Pattern, there are some fundamental differences between the two.
1. The Indian Parliament is **not a Sovereign body** like the British Parliament.
 2. The Indian State has an **elected head**, while the British State has a hereditary head (Monarchy).

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 5

FEDERAL SYSTEM WITH UNITARY BIAS

- 1 Perhaps the most remarkable achievement of the Indian Constitution is to confer upon a Federal system the strength of the Unitary Government.



- 2 Though normally the system of India is Federal, the Constitution enables the federation to transform itself into Unitary State by the assumption of the power of States by the Union in case of emergencies (Part- XVIII).
- 3 Our Constitution contains all the usual features of the federation like two government, division of powers, written Constitution, supremacy of Constitution, rigidity of Constitution, independent judiciary and bicameralism.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 5

FEDERAL SYSTEM WITH UNITARY BIAS

4 However, the Indian Constitution also contains a large number of unitary or non-federal features like a strong Centre, Single Constitution, single citizenship, Flexibility of Constitution, Integrated Judiciary, appointment of State Governor by the Centre, All India Services, Emergency provisions and so on.

5 Moreover, the term 'Federation' has nowhere been used in Constitution.

6 Article 1 describes India as Union of States, which implies two things:

- 1) Indian Federation is not a result of an agreement by the States.
- 2) No State has the right to secede from the federation.

7 Hence the Indian Constitution has been variously described as federal in form but unitary in spirit, "quasi-federal" by K.C.Wheare and "cooperative federalism" by Granville Austin.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 6

INTEGRATED AND INDEPENDENT JUDICIARY



- 1 An independent judiciary having a power of judicial review is another prominent feature of our Constitution.
- 2 The Indian Constitution establishes Judicial system that is Integrated as well as Independent.
- 3 The Supreme Court stands at the top of the Integrated Judicial System below it there are High Courts at State level, Under High Courts there is a hierarchy of subordinate courts.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 6

INTEGRATED AND INDEPENDENT JUDICIARY

4 This single system of courts enforces the Central laws as well as State laws, unlike in USA where the federal laws are enforced by the federal judiciary and the state laws are enforced by the state judiciary.



5 The Supreme Court is a Federal Court, the highest court of appeal, the Guarantor of the Fundamental Rights of the Citizens and the Guardian of the Constitution

6 Hence, the Constitution made various provisions like the security of tenure of Judges, fixed service conditions of the Judges etc to ensure the Supreme Court's Independence.

POINT NO. 7

JUDICIAL REVIEW MAKES THE CONSTITUTION LEGALISTIC

1 Our founding fathers stood by the Principle of Rule of Law, which is considered to be a basic feature of the Constitution.



2 The Judicial power exercisable by the Courts under the Constitution is guaranteed by this principle of judicial review.

3 Judicial Review is a necessary component of fundamental rights for it is meaningless to enshrine individual rights in a written Constitution as fundamental rights if they are not enforceable in courts of law against any organ of the state be it Executive or Legislative.

SUMMARY OF SALIENT FEATURES OF THE INDIAN CONSTITUTION

- 1 DRAWN FROM DIFFERENT SOURCES
- 2 LENGTHIEST WRITTEN CONSTITUTION
- 3 MORE FLEXIBLE THAN RIGID
- 4 PARLIAMENTARY FORM OF GOVERNMENT
- 5 FEDERAL SYSTEM WITH UNITARY BIAS
- 6 INTEGRATED AND INDEPENDENT JUDICIARY
- 7 JUDICIAL REVIEW MAKES THE CONSTITUTION LEGALISTIC
- 8 SYNTHESIS OF PARLIAMENTARY SOVEREIGNTY AND JUDICIAL SUPREMACY
- 9 FUNDAMENTAL RIGHTS
- 10 DIRECTIVE PRINCIPLES OF STATE POLICY
- 11 FUNDAMENTAL DUTIES
- 12 SECULAR STATE
- 13 UNIVERSAL ADULT FRANCHISE
- 14 SINGLE CITIZENSHIP
- 15 INDEPENDENT BODIES
- 16 EMERGENCY PROVISIONS
- 17 THREE-TIER GOVERNMENT
- 18 CO-OPERATIVE SOCIETIES

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suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao

K. Srikanth

D. Sunil Kumar

L. V. Krishna

Y. Deepthi

Amrita Naidu

M. Binukrishna

G. Ravi Babu

D. Joji

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